

Satya Prakash Gupta v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 30 September 2024 · 2024:AHC:159528-DB · WRIT - C No. 32814 of 2024 · **Writ disposed; dues dispute relegated to clause 6.5.**

HEADNOTE

A dispute over the correctness of electricity dues, including whether the consumer consumed energy, cannot be decided in writ. The petition was disposed of, leaving the petitioner to object before respondent No. 3 for a decision under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks of receipt of the objection.

FACTUAL SUMMARY

The petitioner, Satya Prakash Gupta, challenged successive bills by which the Electricity Department demanded electricity dues. The connection had earlier stood in his father's name and had been disconnected. On payment of Rs. 20,000 towards those dues, the Department restored the connection, while the balance remained unpaid. The petitioner said he had not consumed electricity for a long period and that the demand was incorrect. The Department's case was that restoration followed only a part payment of the outstanding amount.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Disputed electricity dues left to a clause 6.5 objection

HOLDING

The dispute over the amount demanded by the electricity bills cannot be decided in writ jurisdiction. The petitioner may place his objection before respondent No. 3, which is to be decided under clause 6.5 of the Electricity Supply Code, 2005 within four weeks of receipt of the objection. The writ petition is disposed of on that basis. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The High Court declined to decide in writ whether the petitioner had consumed electricity and whether the Department's dues were correct, and disposed of the petition so that the objection could be decided under clause 6.5. ¶ 4

6.5-representation-as-appropriate-remedy The course left open against the impugned demand was an objection to respondent No. 3, to be decided under clause 6.5 within four weeks of its receipt. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER CONSUMED ELECTRICITY AND WHETHER THE BALANCE DEMANDED AFTER THE PART PAYMENT OF RS. 20,000 IS CORRECT

Left to respondent No. 3 on an objection under clause 6.5 ¶ 2-4